

1.

CASE #	CASE NAME	HEARING NAME
CVME2505917	CAPITAL ONE, N.A. VS WACHTER	MOTION TO VACATE DISMISSAL 664.6 AND ENTER JUDGMENT

Tentative Ruling: OFF CALENDAR.

2.

CASE #	CASE NAME	HEARING NAME
CVME2506507	CAPITAL ONE N.A. VS RASCON	MOTION TO VACATE DISMISSAL 664.6 AND ENTER JUDGMENT

Tentative Ruling: OFF CALENDAR.

3.

CASE #	CASE NAME	HEARING NAME
CVME2511171	NAVY FEDERAL CREDIT UNION VS BROWN	MOTION TO COMPEL FURTHER RESPONSES

Tentative Ruling:

Moving party: Plf, Navy Federal Credit Union
Represented by: Silverman Theologou, LLP

Responding party: Def, Shanae Brown
Represented by: *self-represented*

Motion filed: 4/1/26

Opposition filed: 4/21/26

Reply filed: none at the time the workup was completed

Tentative rulings posted for the 5/4/26 hearing and 6/29/226 hearing.

Meet and Confer Efforts

A motion to compel a further response to interrogatories, requests for production of documents, or requests for admission must be accompanied by a meet and confer declaration. (CCP § 2030.300(b), § 2031.310(b); § 2033.290(b).) The declaration must state facts showing a “reasonable and good faith attempt, **either in person, by telephone, or by videoconference**” to resolve informally the issues presented by the motion before filing the motion. (CCP § 2016.040(a).)

“The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1159 citing, *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016-2017.) “Failing to make a “reasonable and good faith attempt” to resolve the issues informally before a motion to compel is filed constitutes a “misuse of the discovery process” for which monetary sanctions can be imposed. (*Id.* at § 8:1174.)

Here, Plaintiff served the SRs, RFAs, and RPDs on 12/17/25. (Dec.Kostelidis ¶ 2, Ex. “A”.) On 1/26/26, Plaintiff sent a meet and confer letter stating that no discovery responses had been received. (*Id.* ¶ 3, Ex. “D”.) On 1/29/26, Plaintiff received Ms. Brown’s discovery responses by mail. (*Id.* ¶ 4, Ex. “B”.) Plaintiff determined the responses were insufficient, evasive, and not Code-compliant, and sent a detailed meet and confer letter on 2/2/26. (*Id.* ¶¶5-6, Ex. “C”.) Plaintiff did not provide supplemental responses by the deadline, or thereafter. (*Id.* ¶ 7.) Plaintiff has **not** sufficiently met and conferred to support this motion **because it did not meet and confer “in person, by telephone, or by videoconference” as required by CCP § 2016.040(a).** Notably, at the 2 prior hearings hearing held on 5/4/26 and 6/29/2026, the Court continued the motion to allow Plaintiff to properly meet and confer in the manner required by CCP § 2016.040(a). The Court also stated: “If Defendant properly responds to the discovery demands, Plaintiff is to notify this court to vacate the hearing. If Defendant does not properly respond to the discovery demands, Plaintiff is to file a Declaration stating the efforts made to meet and confer.” (Minute Order of 5/4/26 and 6/29/26.) As of 8/4/26, the motion remains on calendar. And, no meet and confer declaration has been filed since the 5/4/26 or 6/29/26 hearing.

Separate Statement

Cal. Rules of Court (CRC), Rule 3.1345(c)(1)-(3) requires that a separate statement set forth each interrogatory to which further answer is sought, numbered and set forth *verbatim*; the answer or objection made by the opposing party, also *verbatim*; and the reason further responses should be ordered by the court. A separate statement is required. (CRC, Rule 3.1345(c).) Failure to comply with this rule is grounds to deny the motion. (see *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 892-893.) Here, Plaintiff did not file a separate statement. Thus, the motion could be denied on this basis.

The court has given two continuances for the Plaintiff to properly meet and confer **as required by CCP § 2016.040(). Plaintiff has failed to comply; therefore, the Motion is DENIED.**

4.

CASE #	CASE NAME	HEARING NAME
CVME2515361	WELLS FARGO BANK, N.A. VS OLMSTEAD, AN INDIVIDUAL	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Plaintiff Wells Fargo Bank, N.A.
Represented by: Collection at Law, Inc.

Non-Opposing party: Defendant Sheryl A. Olmstead
Represented by: pro per¹

¹ Plaintiff was represented by Huron Legal Group, P.C. when she filed her answer. On June 16, 2026, a substitution of attorney was filed and Plaintiff is now representing herself.